

III. PILLAR II — THE MITIGATION COLLAPSE

a. Introduction to Pillar II

This pillar examines the second stage of the compound pattern: the educational, early-intervention, and developmental-support systems that the Government of Alberta has assumed, through statute, ministerial order, and program establishment, the obligation to deliver to Alberta children and adults with disabilities, and the documented record of those systems' operational contraction across the period 2019 to 2026.

The pillar proceeds in five parts. Section III(b) examines the Family Support for Children with Disabilities (FSCD) program. Section III(c) examines the Persons with Developmental Disabilities (PDD) program. Section III(d) examines inclusive education in Alberta's K-12 system. Section III(e) treats as a load-bearing finding the data opacity that now characterizes the provincial reporting on all three programs — that is, the provincial government's documented cessation of publicly reporting the waitlist, wait-time, and service-delivery data that would permit external assessment of program performance. Section III(f) examines the documented policy intent arc, assembling in chronological form the government statements, review processes, and policy documents from 2019 through 2026 that place the contractions described in the preceding subsections into a continuous documented policy trajectory. Section III(g) traces, as in Pillar I, how the documented contractions intersect a single human life across the prenatal, early childhood, school-age, and adult stations.

A note on discipline: this pillar reports what Alberta's own Auditor General, established parent-led advocacy organizations with published survey research, the provincial budget documents, and the Government of Alberta's own public statements establish. Where a finding rests on survey-based evidence with defined sample limitations, the pillar says so. Where the government has declined to publish the data required to assess a claim, the pillar records that absence rather than substituting for it. The pillar does not characterize the motives of named officials; it describes documented actions and their documented effects, and permits the reader to draw inferences from the record.

b. Family Support for Children with Disabilities (FSCD)

b.i. Program Purpose and Statutory Basis

The Family Support for Children with Disabilities Act, SA 2003, c F-5.3, establishes FSCD as the Government of Alberta's principal program for supporting families of children under the age of 18 with severe disabilities. The program funds respite services, family support services, specialized-service provision, equipment and modifications, and (in more complex cases) child-focused services including therapy and educational assistant-equivalent home support. For children with autism spectrum disorder, genetic syndromes, intellectual disabilities, and complex developmental profiles, FSCD is the primary publicly-funded provincial support system from early childhood

through age 18, at which point children transition (if eligible) to the Persons with Developmental Disabilities program examined in Section III(c).

b.ii. Documented Program Performance — January 2025 Inclusion Alberta Survey

In October and November 2024, Inclusion Alberta — an established parent-led provincial advocacy organization with a fifty-year history of disability-rights work and a published record of survey-based program evaluation — conducted a survey of FSCD-connected families. The survey received 540 responses from families across 79 of Alberta's 87 electoral districts. The findings, published January 2025 under the title *Experiences with Family Support for Children with Disabilities*, document a program in functional contraction.

The headline findings:

- Average wait for the full range of FSCD services following initial application: three years.
- Proportion of respondent families with only Family Support Services (the minimal, pre-caseworker service tier) still waiting for child-focused services: the survey-reported group waiting at the time of response had been waiting an average of 13.5 months, and 85% of those families had not yet been assigned a caseworker.
- Proportion of respondent families reporting negative effects from the period spent waiting for services: 58%, with effects including job loss, missed developmental intervention windows, and deterioration of family members' physical and mental health.

The survey is, in the authors' own framing, a necessary substitute for government-published waitlist data. It is what Inclusion Alberta produced because the Government of Alberta had ceased publishing the equivalent data in the ordinary course of provincial program reporting. The methodological point is load-bearing: it is not that the Inclusion Alberta survey is the best available source. It is that in the absence of government publication, the survey is a source at all.

b.iii. Auditor General Findings, 2022 and After

The Office of the Auditor General of Alberta published a report on the Family Support for Children with Disabilities program in 2022. The published findings included that caseworker training was not being effectively delivered, that oversight processes of caseworker performance were ineffective, and that specific administrative systems within the program were underperforming against their own stated standards. These findings were delivered to the Government of Alberta in its capacity as the responsible authority.

The government's response, observed in the period 2022 through 2026 and documented across the Inclusion Alberta findings above, the Alberta Union of Provincial Employees (AUPE) reporting on caseworker contract non-renewals (January 2025), and contemporaneous reporting by the independent news outlet Hold My Hand Alberta (September 2024), has been characterized by:

- Increase rather than reduction of caseworker caseloads. One documented caseload reached 400 families per worker (Hold My Hand Alberta, September 2024) against a recommended maximum of 100.
- Non-renewal of seven temporary FSCD caseworker contracts in September 2024 (confirmed by the Ministry of Seniors, Community and Social Services).
- A provincial hiring freeze in the relevant ministry documented by AUPE in January 2025.
- Budget 2025 FSCD increase of 3.61%, against a population-plus-inflation growth rate calculated at 7.3% — a real-terms reduction of approximately 3.69%.

The Auditor General's findings have not been withdrawn. The conditions the findings described have, on the available evidence, intensified rather than improved.

b.iv. The Three-Stage Access Architecture and the Family-Facing Interface

The Government of Alberta restructured FSCD access in 2023 into a three-stage process: (1) application and eligibility adjudication; (2) Family Support Services (a minimal-intensity agreement covering limited respite and basic supports); (3) the full FSCD service agreement. Survey data documents that Stage 1 can take months, Stage 2 is a holding pattern of an average 13.5 months, and Stage 3 is where the three-year average wait time is accrued.

The family-facing communication of this architecture is on the record. When families contact FSCD to request a status update on caseworker assignment, the provincial automated response is as follows: "There are currently delays in caseworker assignment, and we cannot provide any timelines at this time." (FSCD automated email response, posted publicly by Sarah Doll, co-founder of Hold My Hand Alberta, September 2024.)

That response is not a transmission error or a placeholder. It is the operational official response of the program to its documented service population. It is included in this pillar because administrative-law analysis of procedural fairness, undertaken in Section V of this brief, turns in part on the content and operation of the communication mechanisms through which affected persons are informed of government decisions concerning their entitlements.

c. Persons with Developmental Disabilities (PDD)

c.i. Program Purpose and Statutory Basis

The Persons with Developmental Disabilities Services Act, SA 2024, and its predecessor legislation establish PDD as Alberta's principal program for supporting adults aged 18 and older with developmental disabilities that were present before age 18. PDD funds residential support, employment support, community access, individualized care planning, and (where appropriate) behavioural and psychological supports. Approximately 13,000 adults are currently receiving PDD services (Inclusion Alberta, January 2025).

c.ii. Documented Program Performance — January 2025 Inclusion Alberta Survey

Parallel to the FSCD survey described in Section III(b)(ii), Inclusion Alberta (in partnership with ALIGN, a network of Alberta community-based service delivery organizations) conducted a PDD-specific survey over October and November 2024. The survey received 540 responses from PDD-connected individuals and family members. The findings, published January 2025 under the title *PDD Current State: Critical and Urgent: Experiences with Persons with Developmental Disabilities*, document the following:

- 70% of respondents reporting that they still needed to meet with a caseworker to develop their Outcome Plan — the individualized document that governs what supports the recipient actually receives.
- 41% of respondents reporting that the supports they eventually receive are not helping them.
- The Budget 2025 PDD increase of 5.94%, against the same 7.3% population-plus-inflation growth threshold, representing a real-terms reduction of 1.36%.
- The discontinuation of funding, twelve months earlier than contractually anticipated, for three advocacy organizations providing direct support to PDD-connected families (CBC News, January 23, 2025, documenting the defunding of organizations under the Government of Alberta's "merit-based programming" mandate).

c.iii. The FSCD-to-PDD Transition Gap

Children who have been receiving FSCD services lose that eligibility at age 18. They then become eligible (if they qualify) for PDD. The transition is not automatic or seamless. It requires a new application, a new eligibility determination, and — as a requirement of most PDD applications — a new psychoeducational assessment conducted by a registered psychologist. Private psychoeducational assessments in Alberta at the time of this writing cost approximately \$2,000 to \$4,000, of which no portion is provided by the province to the transitioning young adult or their family. School-provided assessments are available in some divisions but not all, and are conducted on school-controlled rather than family-controlled schedules.

The application for PDD can commence at age 16, with services commencing (if approved and a placement is available) at age 18. The interval between the end of FSCD coverage and the commencement of PDD services is not structurally zero. It is, as Inclusion Alberta's January 2025 survey documented, "however long the PDD waitlist takes" — a quantity the provincial government has not publicly reported in three years, as examined in Section III(e) of this pillar.

d. Inclusive Education in the Alberta K-12 System

d.i. The Statutory and Ministerial Framework

Alberta's *Education Act*, SA 2012, c E-0.3, and its predecessor *School Act* established the provincial framework within which public school boards deliver education to Alberta children. The

Act requires school boards to provide a continuum of supports and services for students with disabilities. Alberta Education's Ministerial Orders on student learning, successively issued, have articulated a policy commitment to inclusive education — that is, to the general principle that students with disabilities are educated alongside their non-disabled peers in their neighbourhood school community wherever that placement can meet their educational needs.

The operational implementation of inclusive education in Alberta is primarily funded through Alberta Education's special-education grant architecture, which uses a coding system (Codes 41 through 47) to identify students with disabilities of specific types and severities for funding purposes. The codes most directly relevant to this brief's subject matter are:

- Code 41 (Severe Multiple Disabilities)
- Code 42 (Severe Emotional/Behavioural Disability)
- Code 43 (Severe Physical/Medical Disability, including many students with autism spectrum disorder)
- Code 44 (Severe Physical/Medical Disability, alternative category)
- Codes 45, 46, 47 (Moderate and mild disability codes)

d.ii. The Documented Implementation Gap

The gap between the statutory commitment to inclusive education and its operational implementation in Alberta classrooms is documented in the published research of parent-led advocacy organizations, in school-division-level accountability reporting, and in the record of complaints proceeding through Alberta's professional regulatory channels (see Section V(c) and the cover note of this brief). Inclusion Alberta's published research, its media releases across the 2024-2026 period, and the parallel published research of Alberta's teaching profession and education-support-worker unions document that:

- Classroom complexity — the practical support intensity required by an individual classroom as a function of the number of students with disabilities, their diagnostic profiles, and the availability of educational assistant support — has risen across the period examined without commensurate increases in the classroom support resources provided to teachers.
- Educational assistant hiring has in multiple school divisions been frozen or reduced despite rising enrolment of students with documented disabilities.
- Specific inclusive-education practices including universal design for learning, co-teaching models, behaviour-support consultation, and trauma-informed practice are inconsistently implemented across the province, with implementation quality varying by school division, by school administrative leadership, and by year-specific fiscal conditions.

The result is a system in which the provincial policy commitment to inclusive education is not, on the documented evidence, matched by the operational capacity of the classroom environments in which that commitment is supposed to be operationalized.

d.iii. The Professional-Conduct Complaint Record

The Alberta Teaching Profession Commission (the provincial regulatory body governing the teaching profession since 2023, succeeding the Alberta Teachers' Association's former professional conduct jurisdiction) is currently processing complaints arising from documented failures of school-based accommodation for children with disability-related support needs, as noted in the cover note of this brief. The complaint record — while confidential under the Commission's process and not reproduced here — is a documented institutional response to the implementation gap described in the preceding subsection. Complaints of this type are filed by parents, by former educators, and (in some cases) by students themselves, and they constitute evidence that the implementation gap is not a matter of subjective dissatisfaction but is producing outcomes that meet the regulatory threshold for formal professional-conduct scrutiny.

d.iv. The K-12 Fiscal and Policy Record 2019-2026

The provincial education sector's fiscal and policy record across the period 2019 through 2026 includes, at minimum:

- Fiscal restraint on the Alberta Education budget during the 2019-2022 period resulting in documented per-student funding reductions in real terms (Alberta Teachers' Association and multiple school board financial statements, period 2019-2022).
- Sustained teacher-student ratio increases documented at the school division level across the period.
- Labour dispute and collective bargaining processes across 2024-2026 concerning class size, classroom complexity, and compensation, culminating in job action processes and associated legislative responses.
- The passage of Bill 2 (the *Back to Class (Protection of Education) Act*, 2025) and the provincial government's associated legislative responses to labour disputes in the education sector, including the invocation of notwithstanding-clause mechanisms in related legislation.

The operational conditions under which inclusive education is delivered in Alberta in 2026 are the conditions produced by the fiscal and policy record across the preceding six years.

e. Data Opacity as an Independent Evidentiary Finding

The preceding subsections have, at multiple points, required reference to survey-based evidence produced by parent-led advocacy organizations because the corresponding government-published administrative data is no longer publicly available. This subsection treats that data opacity as an independent finding of Pillar II rather than as a methodological limitation of the preceding subsections.

The documented facts:

The Government of Alberta last publicly reported PDD waitlist numbers — the number of adults eligible for PDD services but not yet receiving them — in 2021 (Inclusion Alberta, *PDD Current State: Critical and Urgent*, January 2025, citing historical government publications). Inclusion Alberta has formally requested updated data and has not received it.

The FSCD waitlist — the number of families who have applied and are awaiting eligibility determination, plus those with eligibility determinations awaiting FSS assignment, plus those with FSS assignments awaiting child-focused services — is not comprehensively published in the ordinary course of provincial program reporting. AUPE, in January 2025 reporting, documented approximately 12,000 families waiting for FSCD services, with some waiting 14 or more months; that figure is AUPE-sourced, not government-sourced.

The proportion of PDD recipients receiving services that meet their documented Outcome Plan requirements is not publicly reported in provincial program performance publications in a manner that would permit external year-over-year assessment.

Inclusive-education classroom-complexity indicators — the caseload and composition data that would permit assessment of whether classroom environments are operationally capable of delivering on the province's inclusive-education commitment — are not consistently collected or published at the provincial level in a form accessible to external researchers or to the affected population.

Considered together, the absences above describe a condition in which the government administering the programs has ceased to publish the data that would permit independent assessment of those programs' performance. This is not a methodological inconvenience. It is a substantive finding. A program whose performance data is suppressed cannot be meaningfully held to account by the legislature, by the press, by affected families, or by the courts. The suppression of the data and the degradation of program performance are, on the available evidence, coincident in time. The pillar does not assert that the data suppression caused the performance degradation. The pillar records that the suppression makes the performance degradation systematically harder to challenge, and that the decision to suppress the data is an affirmative government action that bears scrutiny in its own right.

In Section V of this brief, this finding is applied to the administrative-law analysis of procedural fairness. For present purposes, the pillar records the following: where the provincial government has affirmatively chosen not to publish data that the ordinary practice of program accountability would require it to publish, the proper evidentiary response is not to treat the absence of data as a neutral methodological condition. It is to treat the absence as evidence in itself — evidence of the government's position on the visibility of its own programs' operation to the public.

f. The Documented Policy Intent Arc, 2019-2026

The contractions examined in Sections III(b), III(c), and III(d) are not isolated administrative events. They are the outcomes of a documented policy trajectory spanning three successive

premierships (Kenney, 2019-2022; Smith, 2022-present) and multiple cabinet reorganizations. This subsection assembles the trajectory in chronological form.

2019. The Government of Alberta, under Premier Kenney, de-indexed AISH from the Consumer Price Index (Bill 20, 2019). The University of Calgary subsequently calculated that de-indexation cost Alberta's disability-benefit-recipient population approximately \$118.6 million in forgone purchasing power in 2020 alone.

2020. The Kenney government commissioned an external review of AISH and broader Alberta income-support programs. The review's terms of reference, its contracted scope, and its reported direction were the subject of contemporaneous reporting by Alberta media (Alberta Views, CBC News, The Tyee, and others, period 2020-2022). The review is cited in this subsection as a documented policy input; its substantive findings, where publicly available, inform the analysis that follows.

2022. Premier Smith succeeded Kenney. In November 2022, the Smith government announced re-indexation of AISH to the Consumer Price Index, effective January 1, 2023. The University of Calgary-calculated cost of the prior de-indexation to AISH recipients as of that date was not restored; re-indexation applied prospectively.

2023-2024. The Smith government instituted a hiring freeze affecting FSCD caseworkers (see Section III(b)(iii)) and an associated freeze on new AISH applications. The Alberta Union of Provincial Employees publicly documented both in February 2024, with President Sandra Azocar stating that disabled Albertans were waiting more than two years for assessment.

January 2025. Inclusion Alberta's *Experiences with FSCD* and *PDD Current State* surveys were published. Voices of Albertans with Disabilities and the Centre to Empower All Survivors of Exploitation and Trafficking were defunded under the Government of Alberta's "merit-based programming" mandate. CBC News reported the defunding in late January 2025.

February 2025. Alberta Budget 2025 was released. AISH funding was reduced by \$49 million. Homelessness funding was reduced by \$4 million. FSCD increases (3.61%) and PDD increases (5.94%) fell below the population-plus-inflation threshold (7.3%).

July 2025. The Government of Alberta announced that the federal Canada Disability Benefit, scheduled for commencement in July 2025, would be subject to a dollar-for-dollar clawback against AISH benefits. Alberta is the only province or territory to have adopted this position. The estimated annual provincial fiscal effect is approximately \$190 million in provincial retention of federal benefit transfers.

October 2025. The Government of Alberta increased community-housing rents by 63% via Ministerial Order, resulting in a documented \$221-per-month rent increase for AISH recipients in the affected community housing. The increase was not offset by a corresponding increase in the AISH base rate.

November 26, 2025. Inclusion Alberta published a media release titled *Bill 12 erodes rights and deepens poverty for Albertans with disabilities*, opposing Bill 12's proposed elimination of the Citizens Appeal Panel for AISH eligibility determinations.

December 9, 2025. Bill 12 (the *Assured Income for the Severely Handicapped Amendment Act*, 2025) was passed by the Alberta Legislature. Section 12.8 of the amended Act eliminates the Citizens Appeal Panel and designates the Medical Review Panel as the final decision-maker on eligibility and reassessment matters. Independent analysis of Section 12.8 by Zachary Weeks (November 28, 2025) confirms that Bill 12 removes the previous framework's independent appeal pathway and concentrates final adjudicative authority within the ministry's own appointed review panel.

Budget 2026 and forward. Alberta Budget 2026 projects a provincial deficit of approximately \$9.4 billion. AISH budget reductions are projected to continue at \$22 million in 2026-27 and \$6 million in 2027-28. The Heritage Savings Trust Fund stood at approximately \$31.9 billion as of Q3 2025, having grown \$383 million in that quarter alone.

July 1, 2026. The AISH-to-ADAP transition, examined in Pillar III of this brief, takes effect.

The arc above is not a collection of separate events. It is a policy trajectory in which, across seven years and two premierships, the government administering Alberta's disability-support programs has produced a cumulative outcome in which: AISH has been de-indexed and then partially re-indexed; caseworker contracts have been reduced; FSCD and PDD budget increases have fallen below the inflation-plus-population threshold; advocacy organizations serving the affected population have been defunded; federal disability benefits have been clawed back dollar-for-dollar; community-housing rents for the affected population have been increased by ministerial order; the independent appeal mechanism for the disability-income program has been eliminated; and the core program is being restructured into a successor program (ADAP) with reduced base benefit, reduced earned-income exemption, and no legislated cost-of-living adjustment, examined in Pillar III.

Each step in the arc is documented by government publications, legislative records, or credible independent reporting. The arc itself — the aggregation of the steps into a single trajectory — is the finding of this subsection.

g. The Life Course

The mitigation systems examined in this pillar exist to intervene at specific stations of a human life. The following passage traces, across the same four life-course stations used in Pillar I, where each mitigation station was designed to engage and what the pillar's preceding subsections document as the present-day state of that engagement.

Prenatal. Alberta's provincial prenatal-care architecture is not principally the subject of this pillar; prenatal care is delivered through Alberta Health Services and is not a disability-support system in the sense examined here. The relevant mitigation concept at the prenatal station is the identification

of prenatal risk factors documented in Pillar I's peer-reviewed literature — PFAS body burden, pesticide exposure, fluoride exposure, other legacy-contamination exposures — and the provincial regulatory response to those risk factors. That response, examined in Pillar I Section II(d), is currently insufficient at the level of primary prevention. The mitigation station at the prenatal level is therefore not engaged in the form Pillar I's literature would indicate it should be.

Early childhood. The early-childhood mitigation station is the FSCD program examined in Section III(b). FSCD is the system that, by statutory and program design, is supposed to intervene during the early-childhood window when developmental concerns become observable and when early intervention has the highest evidence-based effectiveness. The documented reality is a three-year average wait for full services, an 85% rate of non-assignment to a caseworker at the 13.5-month mark, and an automated government response that no timeline can be provided. The early-childhood station is therefore engaged late, partially, or not at all for the majority of the families whose children require it.

School-age. The school-age mitigation station is the inclusive-education framework examined in Section III(d), operationalized through Alberta Education's Codes 41-47 coding, individual program planning, educational assistant support, and classroom accommodations. The documented reality is a system in which the statutory commitment to inclusive education coexists with a classroom operational capacity that does not, on the available evidence, reliably deliver on that commitment. Professional-conduct complaints documented through the Alberta Teaching Profession Commission represent a subset of the cases in which the implementation gap has produced regulatory-threshold outcomes.

Adult. The adult mitigation station is the PDD program examined in Section III(c), together with the AISH/ADAP income-support program examined in Pillar III. For adults with developmental disabilities requiring support beyond income, PDD is the system that — if functional — would provide the residential, employment, community-access, and individualized-care supports that enable a dignified adult life. The documented reality is a program whose waitlist has not been publicly reported in three years, whose Outcome Plan process has 70% of surveyed recipients still awaiting caseworker engagement, and whose 41% of surveyed recipients report that the supports they eventually receive are not helping them. The adult mitigation station therefore arrives, for the population examined in this pillar, simultaneously with the economic-output contractions examined in Pillar III.

The four stations, taken together, describe a condition in which the province's statutory commitments to intervene at each life-course point have not been operationally fulfilled, and in which the documentary apparatus required to assess that fulfillment has been reduced. The population on whose behalf the commitments were undertaken is not a hypothetical population. It is the population examined in Pillars I and III of this brief.